

POLICIES AND PROCEDURES

Honorable Joshua D. Wolson

United States District Court for the Eastern District of Pennsylvania

James A. Byrne United States Courthouse

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I. GENERAL MATTERS

A. Correspondence With Chambers

Counsel should direct communications concerning administrative or procedural matters to a Courtroom Deputy or Chambers. Parties may submit letters (when appropriate) via email, but they must limit such communications to routine matters for which no opposition is anticipated or required. Responsive letters should only be submitted at Judge Wolson's request.

B. Conventions For Emails

Emails to Judge Wolson must include the case name and docket number in the subject line. Judge Wolson will filter emails based on certain terminology in the subject line. Therefore, to ensure that emails receive prompt attention, where appropriate, emails to Judge Wolson must also use the following verbiage in the subject line:

Contents of email	Required verbiage
Letters seeking extensions	"request for extension"
Letters seeking continuances	"request for continuance"
Proposed orders	"proposed order"
Stipulation	"stipulation"
Rule 26(f) reports	"26(f) report"
Letters seeking leave to exceed a page limit	"page limits"
Letters confirming that the parties have set aside dates for depositions	"deposition scheduling"
Letters updating Judge Wolson on the status of settlement discussions	"settlement status"

C. E-Filing Guidelines

1. When submitting exhibits via ECF, parties should submit each exhibit as a separate document on the CM/ECF system, rather than as a single file. If Judge Wolson receives a filing with a single document marked "Exhibits," he will strike the filing. In addition, when parties submit exhibits via ECF, they must give each document a name identifying the document. Thus, it is not sufficient to label a file "Exhibit A." Instead, the name should be "Contract," "Declaration of John Smith," or some other reference that permits Judge Wolson to identify what the exhibit is without having to open the file.

2. Parties should submit deposition testimony and other transcripts to Judge Wolson as full-sized pages, not miniscripts. In addition, parties submitting deposition transcripts should provide only a cover page identifying the witness and relevant pages from the transcripts. Parties should not submit the entire transcript unless the entire transcript is relevant to the issue.

3. Parties should not submit pleadings from the case before Judge Wolson. For example, there is no need to attach a copy of a complaint to a Motion to Dismiss. Judge Wolson can retrieve those documents from the CM/ECF system. Nor should parties submit pleadings from other federal cases. It is enough to cite the pleading by court, case number, and docket number. Judge Wolson will retrieve the pleading from the CM/ECF

system, if necessary. However, if parties rely on pleadings from state or foreign courts that are not readily available on Westlaw or Lexis, they must submit the pleadings as exhibits.

4. All exhibits must be text searchable. To the extent that a document is scanned, as opposed to converted from Word or another format, the party submitting the document must use optical character recognition (OCR) or other comparable technology to ensure the exhibit's searchability.

D. Sealed And Redacted Documents

1. Any party seeking to file material under seal must familiarize itself with the standard set forth in *In re Avandia Mktg., Sales Pracs. & Prod. Liab. Litig.*, 924 F.3d 662 (3d Cir. 2019).

2. A party that seeks to file material under seal must file a sealing motion when it files the material that it seeks to seal. Except in emergency situations, a party may not file a document under seal (or redact necessary and/or substantive information) without a contemporaneous motion to seal the specified information (or without a motion filed in advance that identifies specific information to be placed under seal). A party seeking leave to file material under seal must file its motion of record and provide Judge Wolson via email with courtesy copies of all documents that the party proposes to file under seal. In recognition of the common law right of public access, Judge Wolson requires parties

to file a redacted version of any sealed document on the public record, unless the redactions would be so extensive as to render the document unreadable.

3. When filing a redacted document, a party must submit to Chambers or file on CM/ECF an unredacted version that highlights any portion that the party proposes to redact.

4. Judge Wolson expects parties to work together when filing motions to seal. That is, if a party seeks to file under seal material that an opponent has marked “confidential,” the parties must work together to prepare the required information (such as affidavits or other material necessary to carry the burden of placing material under seal). If a party fails in this obligation, Judge Wolson will consider imposing the costs of additional proceedings (including responses or reconsideration motions necessary to supplement the record) on that party.

5. For any motion or submission in which parties designate more than 10 individual references (that is, separate exhibits or different excerpts of single exhibits) for sealing, Judge Wolson will likely refer the sealing motion to a special master, and Judge Wolson will determine on a case-by-case basis how to split the special master’s costs.

E. Courtesy Copies

Judge Wolson only requires courtesy copies in two circumstances: (1) for any filings made under seal; and (2) for any motions with more than five exhibits. Parties

should submit courtesy copies **electronically** via email to WolsonCourtesyCopy@paed.uscourts.gov and use the case caption, title of the filing, and ECF number in the subject line. Each submission should use the e-filed version that has the CM/ECF system's header at the top of the page. Each document must either (a) be a separate file, with a file name that is consistent with the descriptive name that the document has on the CM/ECF system or (b) include a coversheet that identifies the corresponding entry on the CM/ECF system. Parties may not submit courtesy copies via Dropbox, FTP, or some other source that requires Judge Wolson to download files to the Court's system. Instead, files should be emailed, even if that requires multiple emails. Parties also should not submit paper courtesy copies.

F. Meeting And Confering

Any time that lawyers must meet and confer, whether pursuant to a statute, a federal or local rule, these Policies and Procedures, or a Court order, the parties must have a verbal conversation to satisfy the obligation. The conversation can be in person, by videoconference, or by phone. The mere exchange of written correspondence, whether letter, email, or otherwise, does not satisfy the obligation.

G. *Pro Hac Vice* Motions

Counsel seeking admission *pro hac vice* should use the form available on the Eastern District of Pennsylvania's website.¹ Judge Wolson will deny *pro hac vice* motions for which no fee is submitted. Any lawyer admitted *pro hac vice* must register for the Court's CM/ECF system within seven days of the Order. If a lawyer fails to register, Judge Wolson will *sua sponte* cancel the *pro hac* admission. Judge Wolson will not mail orders to lawyers admitted *pro hac vice* who do not register for CM/ECF.

¹ https://www.paed.uscourts.gov/sites/paed/files/documents/forms/app_x.pdf

II. CIVIL CASES

A. Pretrial Procedures

1. Affirmative defenses

Fed. R. Civ. P. 11 only permits parties to assert affirmative defenses for which they have a good faith basis. Parties may not assert affirmative defenses prophylactically. If a party asserts affirmative defenses without a good faith basis, then Judge Wolson may strike all of the party's affirmative defenses.

2. Pretrial conferences

Judge Wolson requires lead trial counsel to attend the scheduling conference pursuant to Fed. R. Civ. P. 16 in person. If lead trial counsel is unable to attend, then Judge Wolson will reschedule the conference. However, any request to reschedule must be made as early as possible and must be based on a pre-existing commitment.

Pending motions (such as a motion to dismiss) do not stay the parties' obligations to meet and confer pursuant to Fed. R. Civ. P. 26(f) or to attend a conference pursuant to Fed. R. Civ. P. 16. The parties should begin discovery as soon as the Rules permit, without waiting for the Rule 16 conference and regardless of whether a motion is pending. Judge Wolson will consider the time that was available and unused in determining an appropriate schedule for the case. If a party wishes to stay discovery during the pendency

of a motion, it should present its request in person at the Rule 16 conference. However, Judge Wolson will grant a stay of discovery only in extraordinary circumstances.

A joint status report pursuant to Fed. R. Civ. P. 26(f) is due at least seven days prior to the Rule 16 conference. Parties must submit that report to Judge Wolson via email. The parties must use Judge Wolson's sample Rule 26(f) form that will be attached to the order scheduling the Rule 16 conference. This form is also available on Judge Wolson's page on the Court's website.

Lead counsel shall participate in the Rule 26 conference, attend the Rule 16 conference, and be deemed lead counsel for all future proceedings. A designation of "lead counsel" will mean that counsel will attend all court proceedings and will deliver an opening statement and closing argument at trial, absent a written request from the client to have someone else perform those tasks.

3. Arbitration matters

Judge Wolson will generally not conduct a pretrial conference for cases that are assigned to the Court's arbitration track. Judge Wolson expects the parties to complete all discovery prior to the date that the Clerk of Court assigns for the arbitration. Counsel may seek the assistance of Judge Wolson, if necessary, to complete discovery in advance of the scheduled arbitration date.

If a party seeks a trial *de novo* after an arbitration, Judge Wolson will schedule the trial as quickly as possible. Judge Wolson does not permit additional discovery or summary judgment motions after the arbitration.

4. Stipulations and proposed Orders

Contrary to Local Civil Rule 5.1.2(9), parties must email all stipulations and proposed orders to Chambers rather than filing them on the docket. Parties should submit stipulations and proposed Orders as Word documents.

B. Motion Practice

1. Formatting requirements

Except as set forth herein, motion practice will be conducted in accordance with Local Civil Rule 7.1. All written submissions to Judge Wolson must be double-spaced, in at least 12-point font with at least one-inch margins. A party may use any proportionally spaced font. All footnotes shall appear in the same font and font size as the body of the submission. Any briefs longer than 10 pages must include a table of contents. Counsel must file text-searchable versions of their briefs on the CM/ECF system.

The parties shall not include substantive arguments in footnotes. **Judge Wolson will not consider substantive arguments made in footnotes, nor will he deem those arguments preserved.**

In all written submissions to Judge Wolson, citations to documents on the docket, e.g., "Amended Complaint," should identify those documents by ECF number.

2. Replies and sur-replies

Counsel should file replies and sur-replies only when necessary. Such briefs must be concise and address only new issues raised by opposing counsel. Judge Wolson discourages any replies or sur-replies that repeat or rehash previous arguments. Any replies or sur-replies must be filed as soon as practicable, but in any event, no later than seven days after the previous filing. Parties may not make additional submissions, whether captioned as a brief, a letter, a notice, or anything else, other than to notify Judge Wolson of subsequent **binding** authority.

3. Length of briefs

Opening briefs in support of and in opposition to a motion shall not exceed 25 pages, unless counsel includes a certification that the brief contains no more than 8,750 words. Replies shall not exceed 10 pages or 3,500 words, and sur-replies shall not exceed seven pages or 2,450 words. Judge Wolson must receive any request to exceed an applicable page limit at least seven days before the filing is due. Counsel may make such a request via letter emailed to Chambers with the words "page limits" in the subject line. Counsel making such a request should confer with opposing counsel and set forth opposing counsel's position in the letter.

4. Rule 12 motions

Any Party that intends to file a motion under Federal Rule of Civil Procedure 12 must contact opposing counsel to discuss the substance of the contemplated motion and to provide an opportunity to cure any alleged pleading deficiencies. For cases filed in this Court, that conversation must happen **at least one week before the due date**. For cases removed to this Court, a defendant that seeks to file a motion to dismiss must contact opposing counsel within three business days of the case being assigned to Judge Wolson. Counsel must have a substantive verbal discussion, whether by phone or in person. Exchanges of letters or e-mails are not sufficient. If the parties cannot reach agreement, then they must submit to Judge Wolson a letter, via email, that does not exceed five single-spaced pages that sets forth each issue to be raised in the motion and each Party's substantive position with respect to that issue. The parties must submit the letter to Judge Wolson by the deadline to respond to the Complaint, but in cases removed to this Court, the due date is extended by seven days if the parties are submitting a premotion letter. Judge Wolson will then attempt to resolve the dispute at a premotion conference, likely by phone or videoconference. If Judge Wolson cannot resolve the dispute at that conference, or if Judge Wolson determines that the conference will not facilitate resolution, then Judge Wolson will set a briefing schedule for the motion. This procedure

does not apply in cases in which either party is proceeding *pro se*. In *pro se* cases, motions may be filed without premotion letters.

5. Summary judgment motions

A summary judgment motion must be accompanied by (a) a single, consolidated statement of facts that the parties will prepare jointly and that will be separately filed on the docket and (b) a joint set of all exhibits cited in the statement of facts. Parties should prepare the statement of facts as follows:

- At least 28 days before the deadline to file a motion, the moving party must serve on all other parties (**but not file**) a statement of undisputed material facts in a numbered, paragraph-by-paragraph recitation that contains specific citations to exhibits or testimony supporting each factual assertion;
- At least 14 days before the deadline to file a motion, any responding party must serve on all other parties (**but not file**) a response to the statement of facts that includes the following: (a) the responding party's response to each factual assertion, which shall be directly under the original paragraph and must include citation to any evidence that the responding party contends creates a material factual dispute and/or any argument for why the evidence that the moving party has cited does not support the factual assertion or is not admissible; and (b) any additional facts that the responding party intends to submit as part of the summary judgment briefing; and

- The moving party may then respond to any statements or arguments in the responding party's submission, directly under the relevant paragraph.

The result of this process will be a single, consolidated statement of facts that permits Judge Wolson to see each party's position on each factual assertion in one place. For example, for paragraph 1 in the statement of facts, Judge Wolson will see the movant's factual assertion and supporting evidence, followed by the respondent's response, followed by the movant's reply, before moving to paragraph 2. The moving party must file the consolidated statement of facts and the joint set of exhibits with its motion. The joint set of exhibits must conform with Section I.C. of these Policies And Procedures.

In the event that there will be cross-motions for summary judgment, each movant may file a separate statement of facts that follows the above procedure for each motion, but Judge Wolson requires the parties to prepare a single, consolidated set of exhibits.

These procedures for a joint statement of facts do not apply to cases in which a party is a *pro se* prisoner.

If a party's motion for summary judgment, or an opposition thereto, is based in whole or in part on an argument that expert testimony is not admissible, then the party must raise such argument in a contemporaneous *Daubert* motion. That is, the party may not simply include arguments about expert inadmissibility within the summary judgment briefing. The argument must be the subject of a separate motion.

6. Briefs from co-plaintiffs or co-defendants

When multiple plaintiffs or defendants appear in a case, they must file joint motions with their co-parties unless there are clear conflicts in their position. The applicable page limits for individual parties shall apply for joint pleadings absent leave of Court.

7. Incorporation by reference

Parties may not incorporate by reference arguments from other briefs in the case, including briefs filed by other parties or briefs filed earlier in the case. If a party needs to repeat an argument that was made earlier in the case, then that party must include the substance of the argument in the brief. If a party purports to incorporate an argument by reference, Judge Wolson will not consider the argument.

8. Reconsideration

Parties should seek reconsideration sparingly. Parties shall not respond to a motion for reconsideration absent a Court Order. Any motion for reconsideration of a discovery order must itself comply with the page limits in Section II.C.1., below.

C. Discovery Matters

1. Discovery disputes

Judge Wolson urges the parties to settle discovery disputes among themselves. However, if the parties remain unable to resolve a dispute despite making a good faith

effort, counsel for the aggrieved party shall file with Judge Wolson a motion in conformity with Local Civil Rule 26.1(b), with a form order and short brief, not to exceed five pages or 1,750 words (not including exhibits), describing the dispute. All discovery motions must attach the discovery requests at issue, as well as the written response. Judge Wolson will schedule a telephone conference with counsel to discuss the motion before the filing of any responsive brief.

In filing a discovery motion, the certificate of counsel must provide **specific** details of the parties' efforts to resolve the dispute informally. These efforts must include verbal communications, whether by phone or in person. Exchanges of letters or e-mails are not sufficient. It is not sufficient to report that opposing counsel was not available or that the parties made "reasonable efforts." Judge Wolson will deny a discovery motion that does not meet these requirements.

In most cases, Judge Wolson expects to rule promptly on discovery motions and often decides such motions during the telephone conference. All motions must contain the certification required under Local Civil Rule 26.1(f).

Counsel should contact Judge Wolson by phone for any issues that arise during depositions. Counsel should not walk out of a deposition before trying to contact Judge Wolson and obtain guidance.

2. Privilege logs

Parties preparing privilege logs must provide information sufficient for the opposing party to determine the basis for the assertion of privilege. For claims of privilege covering multiple e-mails, the party asserting privilege must describe the specific e-mails that are being withheld, as opposed to only the e-mail at the top of the e-mail string, and the basis for withholding each e-mail. Where several e-mails are exchanged between individuals, and the same privilege claim applies to all those e-mails, the party asserting privilege may describe the e-mails collectively, rather than one-by-one.

D. Extensions

Judge Wolson is reluctant to grant continuances of trial dates and other scheduled court events and will only do so in extreme circumstances. Judge Wolson will consider other requests for extensions on an appropriate showing of good cause. Requests for continuances or extensions may be made by letter, which can be emailed to Chambers. Any request for a continuance or extension must include the words "request for continuance" or "request for extension," as appropriate, in the subject line of the email. Judge Wolson expects counsel for the party requesting an extension to confer with opposing counsel and state opposing counsel's position in the letter. **Any request for an extension or continuance must be made at least seven (7) days before the applicable**

deadline or include a showing of good cause as to why the party making the request could not comply with that requirement.

E. Protective Orders And Confidentiality Agreements

Any request for a protective order or approval of a confidentiality agreement must be made by motion. Judge Wolson will not accept stipulated proposed orders in lieu of a motion. All such motions must satisfy the requirements of *In re Avandia Mktg., Sales Practices & Prod. Liab. Litig.*, 924 F.3d 662 (3d Cir. 2019) and *Pansy v. Borough of Stroudsburg*, 23 F.3d 772 (3d Cir. 1994).

F. Pretrial Memoranda

When a party submits a pretrial memorandum, it must include all matters set forth in Local Rule of Civil Procedure 16.1, as well as its position on whether Judge Wolson should impose time limits on each side's trial presentation and, if Judge Wolson does impose a time limit, what that limit should be.

G. Bench Trials

Judge Wolson does not permit summary judgment motions in bench trials without prior leave of court. A party that seeks leave to file a summary judgment motion in a bench trial must send Judge Wolson a letter no more than seven days after the close of discovery explaining the grounds on which the party seeks leave to move. In civil bench

trials, each party will submit direct expert testimony via affidavit on a schedule that Judge Wolson will set, and only cross-examination of experts (and redirect) will occur live.

H. Settlement Agreements

Absent extraordinary circumstances, Judge Wolson will not retain jurisdiction of cases following dismissal due to settlement. Even when he does retain jurisdiction, Judge Wolson will not do so to enforce confidential settlement agreements. If the parties want Judge Wolson to retain jurisdiction to enforce a settlement, they must place the agreement on the docket or include all material terms in a stipulation of dismissal.

III. CRIMINAL CASES

A. Motions

All written submissions to Judge Wolson must be double-spaced, in at least 12-point font with at least one-inch margins. A party may use any proportionally spaced font. All footnotes shall appear in the same font and font size as the body of the submission. Any briefs longer than ten pages must include a table of contents. Counsel must post searchable versions of their briefs to the CM/ECF system.

The parties shall not include substantive arguments in footnotes. *Judge Wolson will not consider substantive arguments made in footnotes, nor will it deem those arguments preserved.*

In all written submissions to Judge Wolson, citations to documents on the docket, e.g., "Indictment," should identify those documents by ECF number.

B. Trial Continuances

A party seeking a continuance must submit a motion stating the reasons for the request. Any such motion must be accompanied by a proposed order consistent with the requirements of the Speedy Trial Act, 18 U.S.C. § 3161. The order shall include a proposed finding that explains in reasonable detail why the ends of justice served by granting the requested continuance outweigh the best interest of the public and the defendant in a speedy trial. Any motion for a continuance of a trial date must be accompanied with a

speedy trial waiver. The speedy trial waiver form can be found as an attachment to the first trial listing. For a Government continuance request, where the defendant will not sign a waiver, Judge Wolson will hold a hearing. Judge Wolson does not permit continuance requests by letter.

C. Pre-Trial Hearings

Judge Wolson typically holds suppression, *Starks*, and *Daubert* hearings at least 14 days prior to trial. Following a hearing on a motion to suppress, Judge Wolson might request the submission of post-hearing briefs or proposed findings of fact and conclusions of law. Judge Wolson will establish a schedule of these submissions after the suppression hearing.

D. Trial Memoranda

At least seven days prior to the trial date, the Government must file a pre-trial memorandum setting forth the essential elements of the offense(s), the facts that it intends to present, the identity of each witness it intends to call, a statement of the substance of each witness's testimony, and any legal issues. The defendant is not required to file a pre-trial memorandum but may do so on the same schedule as the Government.

E. Guilty Plea Memoranda

The Government must submit a guilty plea memorandum at least three business days prior to a change of plea hearing. The memorandum shall include the elements of

each offense to which the defendant is pleading guilty and legal citations for the elements, the maximum and any applicable minimum statutory penalties for each offense, the terms of any plea agreement, and the factual basis for the plea.

F. Sentencing

Sentencing motions, including for departures under U.S.S.G. § 5.K1.1 and supporting memoranda must be filed at least seven days prior to the scheduled sentencing date. Responses to any sentencing motions must be filed at least three days prior to the scheduled sentencing date. Each party must file its sentencing memorandum no later than seven days prior to the scheduled sentencing date.

Judge Wolson will set a sentencing date at the time Judge Wolson accepts a guilty plea or there is a conviction at trial. Judge Wolson discourages requests for continuances of sentencing and will continue a sentencing for good cause only. Absent extraordinary circumstances, Judge Wolson will not consider any request for a continuance exceeding 90 days.

In the rare event of a 90-day continuance, if counsel for both the Government and the defendant(s) believe that good cause exists for an additional continuance beyond the initial 90-day period, then counsel may jointly request in writing an additional continuance. Any such request must state why good cause exists. If Judge Wolson grants

such a request, counsel shall be required to submit in writing a joint status update every 45 days until the sentencing hearing takes place.

If a defendant is responsible for restitution, then the Government must submit information in its sentencing memorandum to enable Judge Wolson to determine entitlement, the name and the address of each victim, the amount of loss for each victim, and documentary support for each amount. If liability for restitution is joint and several, then the Government shall itemize the restitution amount for which each defendant is responsible.

IV. HABEAS MATTERS

In matters that arise under 28 U.S.C. § 2255, Judge Wolson will review a motion or petition and determine whether to request a response from the Government. The Government may, but need not, respond even before Judge Wolson requests a response.

In all other *habeas corpus* matters, Judge Wolson will **not** pre-screen prisoner submissions to determine if it requires a response. Instead, Judge Wolson expects the relevant Government agency (whether a County, the Commonwealth, the United States, or otherwise) to respond to motions or objections within 14 days, absent a Court-ordered extension. In cases in which Judge Wolson is considering a Report and Recommendation, the Government agency may respond by saying that it stands by its prior briefing and/or the Report and Recommendation. Judge Wolson reserves the right to treat a failure to respond as a statement that the motion or objection is uncontested.

V. COURTROOM AND TRIAL PROCEDURES

A. Motions *In Limine*

Absent leave of court, a party shall not file more than five motions *in limine*.

B. Courtroom Technology

Judge Wolson holds proceedings in Courtroom 12-B, which is generally equipped for electronic presentation of evidence. Parties expecting to employ courtroom technology are encouraged to contact the Courtroom Deputy reasonably in advance of trial and to conduct a trial run to minimize disruptions during the trial itself.

C. Jury Selection

Judge Wolson conducts *voir dire*. Judge Wolson generally calls all prospective jurors to sidebar or into the jury room for individual *voir dire* after asking general questions that elicit non-verbal responses. Counsel should expect to make challenges for cause at the conclusion of each potential juror's individual *voir dire* session.

D. Proposed Jury Instructions And Verdict Forms

Judge Wolson will generally require the parties to submit a joint proposed set of jury instructions. Judge Wolson's pretrial order will detail how the parties should present contested jury instructions. Each point for charge and proposed jury interrogatory shall be numbered and on a separate sheet of paper. Each proposed instruction must be submitted with corresponding legal authority. If a model jury instruction is used, then the

party submitting it shall state whether the proposed instruction is unchanged or modified.

If a party modifies a model instruction, then additions and deletions must be noted.

E. Note Taking By Jurors

Judge Wolson generally permits jurors to take notes.

F. Courtroom Protocol

During oral argument outside the presence of a jury, counsel can address Judge Wolson from counsel table or the podium, at counsel's discretion. When examining a witness or addressing a jury, counsel should speak from the podium. Counsel may approach the witness without asking permission. Counsel shall direct all comments and questions to Judge Wolson or the witness, not to opposing counsel or the jury.

Judge Wolson does not permit speaking objections. If counsel needs to be heard on a matter immediately, request a sidebar. Judge Wolson generally prefers to avoid sidebars, however. Therefore, Judge Wolson encourages counsel to raise evidentiary issues at the final pretrial conference or outside the presence of the jury, whenever possible.

Absent leave of Court, only one attorney for each side may examine the same witness or address the jury during the opening statement or summation.

G. Jury Deliberations

Judge Wolson will generally provide the jury with multiple, written copies of the jury instructions. After the jury has been instructed and taken to the jury room, Judge Wolson and counsel will confirm the admitted exhibits to be presented to the jury for its consideration during deliberations if the jury requests. Counsel who seek to depart the courthouse during jury deliberations must first seek leave of Court.

H. Development Of Young Lawyers

Judge Wolson encourages trial counsel to assign court presentations to less-experienced attorneys, particularly where the less-experienced attorney is more familiar with the matter at hand (*e.g.*, discovery hearings). If necessary, Judge Wolson will permit two lawyers to make an argument to ensure that a more experienced counsel has an opportunity to buttress a younger lawyer's presentation, if the request is made in advance. Judge Wolson will draw no inference from a party's decision to have a younger lawyer make a particular presentation, including as to whether the client deems the issue "important."